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Complété	Y
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[startlanguage] Start language	en
[QG10Q1] Country name:	Belgium (Flemish Community)
[QG10Q2] Organization or entity responsible for the preparation of the report:	Flemish Department of Education and Training
[QG11Q1] Is your country a State Party to the Convention?	No [N]
[QG11Q11] Does your country plan to ratify this instrument?	
[QG11Q11_comment] Does your country plan to ratify this instrument? (Comment)	
[QG11Q111] Please indicate the stage of ratification process reached by your country:	
[QG11Q112] Please briefly explain the difficulties encountered in completing the ratification process and the means of overcoming them:	
[QG11(title)] Fichier 1 - If you wish to share any relevant information regarding this section, please upload the file here: (Titre)	
[QG11(comment)] Fichier 1 - If you wish to share any relevant information regarding this section, please upload the file here: (Commentaire)	
[QG11(name)] Fichier 1 - If you wish to share any relevant information regarding this section, please upload the file here: (Nom du fichier)	

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[QG12Q1] Has your country ratified the Protocol?	No [N]
[QG12Q2] Please briefly explain the difficulties encountered:	
[QG12(title)] Fichier 1 - If you wish to share any relevant information regarding this section, please upload the file here: (Titre)	
[QG12(comment)] Fichier 1 - If you wish to share any relevant information regarding this section, please upload the file here: (Commentaire)	
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Comptage des fichiers:	0
[r425q2] Have legislative measures been taken pursuant to the Recommendation?	Yes [A1]
[r425q2_comment] Have legislative measures been taken pursuant to the Recommendation? (Comment)	Not exactly this Convention as Belgium is no party, but similar legal instruments touching the topic of non-discrimination in education.
[r425q5] Please explain briefly the extent to which public policies and programmes correspond to the	1. Legislation of all levels of education are due to incorporate: - the Directives of the European Union regarding non-discrimination in general (e.g. 2000/43/CE on equal treatment of persons without distinction of race or ethnic origin or earlier directives on equal treatment of men and women in access to

general provisions of the Recommendation.	certain services) - EU Charter of Fundamental Rights - European Charter of Social Rights (Council of Europe) - UN Conventions (i.a. UNESCO Convention against Discrimination in Education (1960), the International Covenant on Economic, Social and Cultural Rights (1966) and the Convention on the Elimination of All Forms of Discrimination against Women (1981) 2. The Flemish Parliamentary Act (Decree) of 10 July 2008 on the framework for the Flemish equal opportunities and equal treatment policies (amended by Decree on 28 March 2014). It incorporates 4 EU Directives and defines the following protected characteristics: gender, gender identity and gender expression, so-called "race", colour of skin, descendent, national of ethnic origin, age, sexual orientation, civil status, birth, ability, religious belief or philosophy of life, political conviction, trade union affiliation, language, health status, disability, physical or genetic characteristic, social position, nationality. Integrating 4 EU Directives, it forbids discrimination in all policy domains under Flemish competence, including (higher) education. It foresees civil and penal sanctions in case of discrimination related to the characteristics mentioned above. 3. Explicit references in legislation following more recent ratifications: - UNESCO/COE Lisbon Recognition Convention (in particular art. 7 on refugees) - UN Convention on the Rights of People with Disabilities
[QG13(title)] Fichier 1 - If you wish to share any relevant information regarding this section, please upload the file here: (Titre)	
[QG13(comment)] Fichier 1 - If you wish to share any relevant information regarding this section, please upload the file here: (Commentaire)	
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[QG13(title)] Fichier 2 - If you wish to share any relevant information regarding this section, please upload the file here: (Titre)	

[QG13(comment)] Fichier 2 - If you wish to share any relevant information regarding this section, please upload the file here: (Commentaire)	
[QG13(name)] Fichier 2 - If you wish to share any relevant information regarding this section, please upload the file here: (Nom du fichier)	
[QG13(size)] Fichier 2 - If you wish to share any relevant information regarding this section, please upload the file here: (Taille du fichier)	
[QG13(title)] Fichier 3 - If you wish to share any relevant information regarding this section, please upload the file here: (Titre)	
[QG13(comment)] Fichier 3 - If you wish to share any relevant information regarding this section, please upload the file here: (Commentaire)	
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[QG2Q1_1] Please indicate measures adopted by your government to eliminate and prevent discrimination in education within the meaning of the	Yes [Y]

Convention/Recommendation [1]: (Constitutional laws and/or legislation prohibit discrimination in education)	
[QG2Q1_2] Please indicate measures adopted by your government to eliminate and prevent discrimination in education within the meaning of the Convention/Recommendation [1]: (Regulations prohibit discrimination in education)	Yes [Y]
[QG2Q1_3] Please indicate measures adopted by your government to eliminate and prevent discrimination in education within the meaning of the Convention/Recommendation [1]: (Policies and programmes aim to eliminate and prevent discrimination in education)	Yes [Y]
[QG2Q1_4] Please indicate measures adopted by your government to eliminate and prevent discrimination in education within the meaning of the Convention/Recommendation [1]: (Access to justice in case of violations of the right to non-discrimination in education)	Yes [Y]
[QG2Q1_5] Please indicate measures adopted by your government to eliminate and prevent discrimination in education within the meaning of the Convention/Recommendation [1]: (Access to justice in case of violations of the right to non-discrimination in education)	Yes [Y]

ation [1]: (Combatting discrimination in terms of curriculum)	
[QG2Q1_other] Please indicate measures adopted by your government to eliminate and prevent discrimination in education within the meaning of the Convention/Recommendation [1]: (Other)	
[QG2Q11] Please provide a brief description of the relevant legal, regulatory or policy texts including measures on: Non-discrimination in the admission of pupils to educational institutions Non-differential treatment, including of foreign nationals resident in your country	Basis = Belgian Constitution – art. 24 that stipulates "freedom of education". Freedom of choice and institutional autonomy as a key value, in particular: - Highly devolved educational system - large school autonomy (curriculum, recruitment of staff) - Freedom of education: public and private providers recognized and funded - Freedom of school choice by parents is guaranteed - Open access - no entrance exams, no tuition, in pre(primary), secondary and low tuition in higher and adult education - Funding of private and public schools on equal footing, but have to guarantee open access. - Open access is guaranteed for all students, regardless of their nationality or legal status. See also answer under previous Q.
[QG2Q2_1] Please indicate actions taken by your government to guarantee equal access to all levels and types of education in your country: (Constitutional laws and/or legislation guarantee equal access to education)	Yes [Y]
[QG2Q2_2] Please indicate actions taken by your government to guarantee equal access to all levels and types of education in your country: (Regulations ensure equal access to all levels and types of education)	Yes [Y]
[QG2Q2_3] Please indicate actions taken by your government to guarantee equal access to all levels and types of education in your country: (Policies and programmes ensure	Yes [Y]

equal access to all levels and types of education)	
[QG2Q2_other] Please indicate actions taken by your government to guarantee equal access to all levels and types of education in your country: (Other)	
[QG2Q21] Please indicate the relevant legal, regulatory or policy texts and provide a brief description of the measures taken:	See previous questions. Rules apply to all levels and strands of education and training. The Flemish education system strives towards an inclusive educational system, based on equal opportunities, which is accompanied by a transversal monitoring system. Since 2008 - Monitoring on the basis of indicators for socio-economic situation (SES) of students and schools • from pre-primary to higher education • tracking of individuals and school performance through connected databases • as basis of general funding of (pre)primary and secondary schools (operational budget + teachers) • informing social inclusion policies in higher education • connected to other thematic monitoring • synergies with dedicated funding for equal educational opportunities for refugees or newly arrived migrants, special needs education and education for vulnerable adult learners Main SES indicators: • language spoken at home (as proxy for cultural origin/migrant background) • level of education of mother (as proxy for family educational/social background) • (un)employment status of parents • neighbourhood of residence • entitlement to means-tested study grant (as proxy for family financial situation) For higher education As a general rule, there is automatic admission with choice of institution and programme for each graduate of upper secondary education. No admission examinations, except for a central examination for medical and dentistry studies (after which students have free choice of university) and locally organised tests for visual and performing arts education as well as a physical aptitude test for nautical education. In teacher education a non-binding orientation test is organised for first year students at the start of their studies. This test is supposed to give an indication of the preparedness of the student to succeed and/or to spot possible deficiencies to be remediated.
[QG2Q3_1] Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized,	Yes [Y]

people with disabilities and other vulnerable groups) in learning processes: (Providing financial incentives and fellowships)	
[QG2Q3_2] Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes: (Providing positive or affirmative action measures)	Yes [Y]
[QG2Q3_3] Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes: (Ensuring inclusion in mainstream schools for all learners)	Yes [Y]
[QG2Q3_4] Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to	Yes [Y]

support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes: (Training teachers on inclusive education)	
[QG2Q3_5] Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes: (Ensuring gender parity in science, technology, engineering and mathematics (STEM) and technical and vocational training (TVET))	Yes [Y]
[QG2Q3_6] Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes: (Providing	Yes [Y]

re-entry programmes for young mothers)	
[QG2Q3_7] Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes: (Eliminating all barriers for pregnant girls or young mothers in education)	Yes [Y]
[QG2Q3_8] Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes: (Providing auxiliary assistance)	Yes [Y]
[QG2Q3_9] Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and	Yes [Y]

socially marginalized, people with disabilities and other vulnerable groups) in learning processes: (Adapting education infrastructure)	
[QG2Q3_10] Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes: (Adapting curricula and methods)	Yes [Y]
[QG2Q3_11] Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes: (Providing language classes to newcomers (e.g. refugees))	Yes [Y]
[QG2Q3_12] Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal	Yes [Y]

treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes: (Eliminating administrative barriers to education [2])	
[QG2Q3_13] Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes: (Providing flexible learning pathways)	Yes [Y]
[QG2Q3_14] Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes: (Valuing diversity in schools)	Yes [Y]
[QG2Q3_15] Please indicate the actions taken and planned in your country to ensure	

equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes: (Combatting stereotyping and stigmatisation)	
[QG2Q3_other] Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes: (Other)	
[QG2Q31] Please elaborate further on the measures taken, including those to ensure gender equality and the empowerment of girls and women in and through education:	
[QG2Q32] Please indicate whether your country has adopted and reviewed legislation related to the minimum age for marriage so that it conforms to international standards (18 years):	Yes [Y]
[QG2Q33] Please provide reference to the	Minimal age for marriage is 18 (majority age) for both men and women. In exceptional cases marriage can be allowed for minors,

relevant laws and provisions:	but only with consent of the parents and a court decision. Bigamy is prohibited.
[QG2(title)] Fichier 1 - If you wish to share any relevant information regarding this section, please upload the file here: (Titre)	
[QG2(comment)] Fichier 1 - If you wish to share any relevant information regarding this section, please upload the file here: (Commentaire)	
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[QG2(title)] Fichier 2 - If you wish to share any relevant information regarding this section, please upload the file here: (Titre)	
[QG2(comment)] Fichier 2 - If you wish to share any relevant information regarding this section, please upload the file here: (Commentaire)	
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[QG2(title)] Fichier 3 - If you wish to share any relevant information	

regarding this section, please upload the file here: (Titre)	
[QG2(comment)] Fichier 3 - If you wish to share any relevant information regarding this section, please upload the file here: (Commentaire)	
[QG2(name)] Fichier 3 - If you wish to share any relevant information regarding this section, please upload the file here: (Nom du fichier)	
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Comptage des fichiers:	0
[QG21Q1_SQ001] Is compulsory and free of charge pre-primary education available in your country? (Pre-primary education is compulsory: Please provide the age of enrolment and duration:)	Yes [Y]
[QG21Q1_SQ001comment] Is compulsory and free of charge pre-primary education available in your country? (Comment)	age 5 for 1 year (last year of pre-primary)
[QG21Q1_SQ002] Is compulsory and free of charge pre-primary education available in your country? (Pre-primary education is free of charge for all: Please provide the duration:)	Yes [Y]
[QG21Q1_SQ002comment] Is compulsory and free of charge pre-primary education available in your country? (Comment)	age 2 1/2 to 6 (3-4 years)

[QG21Q2] Please list the laws and policies that ensure the availability of pre-primary education for all and provide information on the difficulties experienced by your government in the realization of access to pre-primary education. Brief quantitative information could be added.	See UOE statistics. Enrolment in pre-primary in Belgium at age 4 (not compulsory) is over 98.5 %.
[QG21(title)] Fichier 1 - If you wish to share any relevant information regarding this section, please upload the file here: (Titre)	
[QG21(comment)] Fichier 1 - If you wish to share any relevant information regarding this section, please upload the file here: (Commentaire)	
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[QG21(title)] Fichier 2 - If you wish to share any relevant information regarding this section, please upload the file here: (Titre)	
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any relevant information regarding this section, please upload the file here: (Nom du fichier)	
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[QG21(title)] Fichier 3 - If you wish to share any relevant information regarding this section, please upload the file here: (Titre)	
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Comptage des fichiers:	0
[QG22Q1] Is primary education compulsory in your country?	Yes [Y]
[QG22Q11] Please indicate the current duration period of compulsory education and the age of enrolment:	Typical age 6 to 12. Duration: 6 years.
[QG22Q2] Is primary education available free of charge to all?	Yes [Y]
[QG22Q21] Please provide the duration and indicate the extent to which it is.	Typical age 6 to 12. Duration: 6 years

[QG22Q3] Is secondary education (middle/high) available free of charge?	Yes [Y]
[QG22Q31] Please provide the duration and indicate the extent to which it is:	Typical age 12 to 18 (or 19 in case of some vocational strands). Duration: 6 to 7 years.
[QG22Q4] Is secondary education (middle/high) compulsory in your country?	Yes [Y]
[QG22Q41] Please provide details on its implementation and indicate the duration of compulsory secondary education and the age of enrolment:	Compulsory education age from 5 to 18 - duration: 13 years free and compulsory education.
[QG22Q42] Indicate whether your country has adopted and reviewed legislation related to the minimum age of entry into employment so that it is aligned with the end of compulsory education:	Yes [Y]
[QG22Q43] Please provide reference to the relevant laws and provisions:	With the last extension of compulsory education from age 16 and 18 (in 1983), it is not allowed for minors to work full-time. They can only take "student jobs/holiday jobs" with a maximum of 50 working days a year.
[QG22(title)] Fichier 1 - If you wish to share any relevant information regarding this section, please upload the file here: (Titre)	
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[QG22(title)] Fichier 4 - If you wish to share any relevant information regarding this section, please upload the file here: (Titre)	
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[QG22(name)] Fichier 4 - If you wish to share any relevant information regarding this section, please upload the file here: (Nom du fichier)	
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[QG22(title)] Fichier 5 - If you wish to share any relevant information regarding this section, please upload the file here: (Titre)	
[QG22(comment)] Fichier 5 - If you wish to share any relevant information regarding this section, please upload the file here: (Commentaire)	
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[QG22(title)] Fichier 6 - If you wish to share any relevant information regarding this section, please upload the file here: (Titre)	
[QG22(comment)] Fichier 6 - If you wish to share any relevant information regarding this section, please upload the file here: (Commentaire)	
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[QG22(size)] Fichier 6 - If you wish to share any relevant information regarding this section, please upload the file here: (Taille du fichier)	
Comptage des fichiers:	0
[QG23Q1_1] Please indicate the measures adopted to ensure that there is no discrimination on the grounds prohibited by the Convention/Recommendation[1] to enter and complete higher education, including technical and vocational education and training: (Constitutional laws and/or legislation prohibit discrimination in higher education, including technical and vocational education and training)	Yes [Y]
[QG23Q1_2] Please indicate the measures adopted to ensure that there is no discrimination on the grounds prohibited by the Convention/Recommen	Yes [Y]

ation[1] to enter and complete higher education, including technical and vocational education and training: (Regulations prohibit discrimination in higher education, including technical and vocational education and training)	
[QG23Q1_3] Please indicate the measures adopted to ensure that there is no discrimination on the grounds prohibited by the Convention/Recommendation[1] to enter and complete higher education, including technical and vocational education and training: (Policies and programs aim to eliminate and prevent discrimination in higher education, including technical and vocational education and training)	
[QG23Q1_other] Please indicate the measures adopted to ensure that there is no discrimination on the grounds prohibited by the Convention/Recommendation[1] to enter and complete higher education, including technical and vocational education and training: (Other)	
[QG23Q11] Please provide a brief description of the relevant legal, regulatory or policy texts including measures on: Non-discrimination in the admission of students to higher education institutions on the	See answer to previous questions.

grounds prohibited by the Convention/Recommendation Non-differential treatment, including of foreign students	
[QG23Q2_1] Please indicate efforts made by your government to ensure that higher education is equally accessible to all on the basis of individual capacity and/or is available free of charge: (Higher education is generally free of charge)	
[QG23Q2_2] Please indicate efforts made by your government to ensure that higher education is equally accessible to all on the basis of individual capacity and/or is available free of charge: (Higher education is accessible on the basis of individual capacity as assessed by reference to relevant qualifications and experience)	Yes [Y]
[QG23Q2_3] Please indicate efforts made by your government to ensure that higher education is equally accessible to all on the basis of individual capacity and/or is available free of charge: (Higher education is accessible through financial incentives and scholarships)	Yes [Y]
[QG23Q2_4] Please indicate efforts made by your government to ensure that higher education is equally accessible to all on the basis of individual capacity and/or is	Yes [Y]

available free of charge: (Higher education is accessible through positive or affirmative action measures)	
[QG23Q2_5] Please indicate efforts made by your government to ensure that higher education is equally accessible to all on the basis of individual capacity and/or is available free of charge: (Higher education is accessible through credit transfer system between states)	Yes [Y]
[QG23Q2_other] Please indicate efforts made by your government to ensure that higher education is equally accessible to all on the basis of individual capacity and/or is available free of charge: (Other)	Modest tuition fees and waivers for certain under-represented groups
[QG23Q21] Please elaborate on the measures taken and provide brief information on the financial costs to receive education in higher public or private education institutions, if higher education is not free of charge:	In general non-discrimination in all level and strands of education is captured in the Belgian Constitution, art. 24. Apart from incorporation of legislation from the EU, the Council of Europe and UN(ESCO) Conventions, in the Flemish higher education legislation, as compiled in the "Higher Education Codex", as well as in ensuing Action Plans for higher education, non-discrimination is mainly captured under the stipulations under the "social mission" of higher education institutions and defines this mainly in terms of "equal educational opportunities", "under-represented groups", "open/non-discriminatory access", "inclusion", "diversity" etc. This implies that HEI are due to prepare strategies on inter alia: - Open/non-discriminatory access (as well as retention/prevention of drop-out) - Support to students in view of completion of studies - Collect data on student population (presence of students from under-represented groups) - Specific adaptations for students with disabilities - Provide social support systems for (vulnerable) students - Specific policies for foreign students and especially to refugees or students in refugee-like status. The Flemish administration provides lump-sum financing to each HEI for its core missions (teaching, research and societal outreach) with the obligation to reserve a part to the "social mission/equal educational opportunities". Moreover, depending on the number of disadvantaged students, each HEI receives top-up financing directly aimed at support of the students. Students of families in the lower income categories receive moreover a study grant (about 25 % of the student population) HEIs are also due to

	report on the “social dimension/equal educational opportunities” in their annual reports that are controlled by the Special Commissioners of the Flemish Government in the framework of the accountability system. Equal educational opportunities (notably in terms of access, retention and completion of studies) are also part of the internal and external quality assurance and accreditation frameworks. Also the amount of the (relatively) low tuition fees and entitlements to reductions and waivers of tuition fees for certain categories of vulnerable students are stipulated by law. Like the rest of Belgium, there is open access to higher education with free choice of institution or programme for all holders of the qualification of secondary education. Only in very few disciplines there is an entrance examination. General policy lines At the start of each new administration, the policy lines for the social dimension in higher education are spelled out with key actions. Specific actions for inclusion of students with Disabilities –Signed agreement between the Flemish authorities and the Support Centre for Inclusive Higher Education (SIHO) – renewed in 2020 (period 2020-2025) and involving all 5 Flemish Universities (and the University Colleges associated with them). Link: https://www.siho.be/en For the 2019-2024 administration 13 objectives and 1 benchmark are as canvas for the policy design for the social dimension in higher education 1. Improve/refine data collecting to inform policy development and monitoring 2. Making diversity more explicit in internal and external quality assurance processes. 3. More systematic analysis and research of effects of policy measures on vulnerable groups of students. 4. Stimulate diversity in teacher training (presence of students of under-represented groups). 5. Create more uniformity in the procedures for application for the status of student with disability. 6. Enhance the legal protection of graduates with disabilities via expansion of their right to access to professions in case employers refuse to make reasonable adaptations. 7. Expand the Inclusive Higher Education support structure for students with disabilities. 8. Organise more efficient study and career guidance for refugees and asylum seekers. 9. Implementation of the European Qualifications Passport for Refugees 10. Financial support to intensive language courses for refugees and asylum seekers 11. Expand study trajectories in preparation to higher education (= measure to prevent drop-out in the beginning of the HE studies) 12. Counter gender imbalance in general and in certain disciplines 13. Counter gender imbalance in higher education staff Indicator and benchmark set by Flemish Government for 2030 (“Vizier 2030” = implementation of 2030 Agenda for Sustainable Development) Indicator: % of youngsters (M/F) with low educated mother starting higher education studies Benchmark: 60 % by 2030. Current figures (2018): 41 % for children of low-educated mother (maximum lower secondary education), 60 % medium-educated mother (upper secondary education qualification), 82 % high-educated mother (higher education degree)
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[QG24Q1_1] Please indicate the efforts made by your government to establish a system of continuing education and equitable access to learning and training opportunities: (Provision of education for persons who have not received or	Yes [Y]

completed the whole period of their primary education)	
[QG24Q1_2] Please indicate the efforts made by your government to establish a system of continuing education and equitable access to learning and training opportunities: (Provision of literacy programmes)	Yes [Y]
[QG24Q1_3] Please indicate the efforts made by your government to establish a system of continuing education and equitable access to learning and training opportunities: (Provision of appropriate learning and life-skills programmes)	Yes [Y]
[QG24Q1_4] Please indicate the efforts made by your government to establish a system of continuing education and equitable access to learning and training opportunities: (Provision of free of charge learning opportunities)	Yes [Y]
[QG24Q1_5] Please indicate the efforts made by your government to establish a system of continuing education and equitable access to learning and training opportunities: (Provision of flexible learning pathways)	Yes [Y]
[QG24Q1_6] Please indicate the efforts made by your government to establish a system of continuing education and equitable access to learning and training opportunities: (Provision of	Yes [Y]

professional training and qualifications)	
[QG24Q1_other] Please indicate the efforts made by your government to establish a system of continuing education and equitable access to learning and training opportunities: (Other)	
[QG24Q11] Please elaborate further on the measures taken:	Description of adult education and training in the Flemish Community of Belgium: https://eacea.ec.europa.eu/national-policies/eurydice/content/adult-education-and-training-3_en#:~:text=Adult%20education%20and%20training%20in%20Flanders,-Adult%20education%20and&text=Adults%20of%2018%20years%20and,adult%20education%20and%20adult%20training. Recent measures: On 16 March 2018, the Flemish government ratified the decree amending the financing system for adult education. This new financing decree will enter into force on 1 September 2019. Adult Education Centers will receive proportionally more resources from then on, if they count more Dutch second language students. The Centers for Adult Basic Education will also be able to count on more resources for each additional student. Centers with many vulnerable students, such as job seekers and the short-qualified, receive proportionally more teachers and support staff. This is based on the idea that these vulnerable adults from the centers require more support and guidance. By introducing a limited output in the financing of the institutions, both the institutions and the students will be stimulated more to obtain a sustainable qualification or diploma.
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[QG25Q1_1] Please indicate the measures taken by your country to ensure equivalence in all educational institutions with regard to: (Establishment of minimum norms and standards in education)	Yes [Y]
[QG25Q1_2] Please indicate the measures taken by your country to ensure equivalence in all educational institutions with regard to: (Establishment of conditions relating to the quality of the education provided (e.g. infrastructure, learner/teacher ratios, teaching and learning materials, use of ICT))	Yes [Y]
[QG25Q1_3] Please indicate the measures taken by your country to ensure equivalence in all educational institutions with regard to: (Adoption of legal or regulatory provisions to ensure that children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools).)	Yes [Y]
[QG25Q11] Please elaborate further on the measures taken:	- Schools enjoy a large degree of design and organisation of curriculum. The educational objectives (learning outcomes/descriptors) are stipulated by Parliamentary Act and their achievement is evaluated by the school reviews of the Inspectorate - Standards for buildings are mostly the general standards imposed for public buildings and follow the Directives of the European Union. - Teaching hours per students are enshrined in the funding system that is based on the number of students, combined with the socio-economic background of the students. - Action plans are in vigour regarding prevention of (gender-related) violence, bullying or other transgressional behaviour at school.
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[QG26Q1_1] Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels in your country and regarding the training for the teaching profession: (Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels))	Yes [Y]
[QG26Q1_2] Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels in your country and regarding the training for the teaching profession: (Initial training and continuous professional development is provided)	Yes [Y]

[QG26Q1_3] Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels in your country and regarding the training for the teaching profession: (Minimum standards and qualifications are required for the teaching profession)	Yes [Y]
[QG26Q1_4] Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels in your country and regarding the training for the teaching profession: (Measures taken to strengthen the social status and attractiveness of the teaching profession)	Yes [Y]
[QG26Q1_5] Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels in your country and regarding the training for the teaching profession: (Performance monitoring systems)	Yes [Y]
[QG26Q1_6] Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels in your country and regarding the training for the teaching profession: (Measures taken to increase	

women in leadership positions in education)	
[QG26Q1_other] Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels in your country and regarding the training for the teaching profession: (Other)	Orientation tests at the beginning of the studies.
[QG26Q11] Please briefly elaborate further on the measures taken:	(1) Enhancing attractiveness of the teacher career (teacher education – alternative pathways to teaching profession) In 2018 teacher career reforms were accelerated after results of a study on time spent teachers was released. The Flemish government also concluded three collective agreements with the social partners for teaching staff in compulsory education, basic adult education and higher education. In addition to a purchasing power increase, a number of substantive measures have also been taken with regard to compulsory education for starting teachers, which should lead to a more stable career and more job security. Resources have been made available to launch teacher platforms for substitute teachers appointed from October to June. Starting September 1, 2019, starting teachers will more quickly receive a temporary appointment with a continuous duration. The possibilities for permanent appointment have been extended to positions for which the holder is absent due to certain leave schemes. As a result, up to 6,000 positions are also eligible for permanent appointment. Schools receive additional resources to develop and offer initial guidance. (2) Enhancing of quality of entrance to teacher training Initial teaching programmes are one of the subjects where a mandatory non-binding entrance test has to be taken by every new entrant. This test provides the student with an accurate assessment of his/her preparedness for the studies and in case of deficiencies, a tailor-made remedial pathway can be set up with the institution.
[QG26Q2] Have there been instances of discrimination as regards the training for education personnel in your country?	No [N]
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[QG27_1] Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms: (Curriculum includes human rights education)	Yes [Y]
[QG27_2] Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms: (Educational and/or extracurricular activities are organized on human rights education)	Yes [Y]
[QG27_other] Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms: (Other)	
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[QG28Q1] Does your country have a regulatory framework relating to the establishment and functioning of private educational institutions?	Yes [Y]
[QG28Q11] Please provide a brief description:	less than 1 % of the school offer in the Flemish Community of Belgium is privately funded. The quasi totality of the schools are publicly funded regardless of their status - public institutions or private foundations. Both types are legally bound to take up their "public responsibility" and are due to follow the same legislation (on quality assurance, open access...) and are controlled by the Inspectorate. Since 2008 also the funding for public and private schools is put completely on equal footing. In secondary education almost 3/4 of the students are enrolled in a publicly funded private institution, that nonetheless follows the same rules as the public schools.
[QG28Q2] Do legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation [1] explicitly apply to private educational institutions?	Yes [Y]
[QG28Q21] Please briefly describe what	Legal framework is the Parliamentary Act (Decree) on equal educational opportunities and equal treatment (2008) that puts

laws, regulations or policies guarantee that the development of private education does not generate discrimination and that private schools offer a relevant alternative in your country:	the funding of public and private schools on the same footing and imposes the same rules in terms of open access. See also: http://www.oecd.org/education/Country%20Background%20Report Belgium Flemish%20Community FINAL%20with%20stat for %20OECD%20website REV%20DN.pdf
[QG28Q3] Does your country have an education policy framework for minimum educational standards as regards the rights of the parents /legal guardians for providing religious and moral education for their children?	Yes [Y]
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[QG29Q1_1] Please indicate the legal, policy and regulatory measures that protect the rights given to national minorities to carry out their own educational activities: (Constitutional laws and/or legislation protect the right to	Yes [Y]

education of national minorities)	
[QG29Q1_2] Please indicate the legal, policy and regulatory measures that protect the rights given to national minorities to carry out their own educational activities: (Legislation or regulations guarantee the right of national minorities to study in their mother tongue)	
[QG29Q1_3] Please indicate the legal, policy and regulatory measures that protect the rights given to national minorities to carry out their own educational activities: (Curriculum is adapted to national minority needs)	Yes [Y]
[QG29Q1_4] Please indicate the legal, policy and regulatory measures that protect the rights given to national minorities to carry out their own educational activities: (Teachers are trained to adapt to national minority needs)	Yes [Y]
[QG29Q1_other] Please indicate the legal, policy and regulatory measures that protect the rights given to national minorities to carry out their own educational activities: (Other)	
[QG29Q11] Please provide a brief description of the provisions:	"Minorities" are represented by the immigrant communities. Several provisions exist, such as increased budget for schools on the basis of socio-economic characteristic of students (see earlier questions) but also specific measures for refugees or people in refugee-like status and newly arrived immigrants (both youth, higher education students and adults).
[QG29Q2] As regards the educational standards in	We have no institutions run by "minorities". Members of immigrant communities can (and do) open schools but according to the Parliamentary Act on equal educational opportunities and

educational institutions run by minorities, please describe the existing legal and policy framework:	treatment it is not allowed to select the students on the basis of ethnicity or other criterion, this is a concern to prevent school segregation.
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[QG210Q1] Please briefly describe the existing legal and policy framework that protects the right to quality education for refugees and migrants in your country:	Based on the principle of the Belgian Constitution of “freedom of education”; the Flemish Community has a long-standing tradition of guaranteeing (tuition-)free education at pre-primary, primary and secondary level to each child/youngster between age 2.5 and 18 regardless of nationality and immigration status (legal or illegal). In all these circumstances the right of the child to education prevails. Moreover similar provisions exist for older students and adults in refugee and refugee-like status in higher and adult education. Every refugee is automatically put in a study programme, which can be combined with employment. On September 4, 2015 The Flemish Government voiced the consensus that under no condition the influx of refugees could function as an excuse not to fully grant the fundamental rights to which each and every person is entitled when on Belgian territory. They therefore established an Inter-Ministerial Committee for the Refugee and Asylum Crisis that was entrusted with overseeing coordinated action of all policy domains in cooperation with civil society. For education, as for the other policy domains, a 2 track strategy was followed: 1. Make full use of the available provisions and give full (budgetary) implementation of the established legislation 2. Take extra measures to fill the gaps in provision and/or to guarantee the sustainability of the support measure. This strategy was followed by the Flemish Parliament that adopted the necessary budget allocations for the implementation. SCHOOL EDUCATION Primary education * For every non-Dutch speaking immigrant an

	individual work plan and curriculum must be drawn up. * Schools can use the supplementary teaching periods to organise a fulltime reception class (15 non-Dutch speaking newcomers generate teaching periods for one full-time equivalent). In general however the foreign mother tongue newcomers join their peers in regular classes and the supplementary teaching periods are used to organise a couple of hours of support within the class or a reception class on a part-time basis. Secondary education * For each non-Dutch speaking immigrant an individual curriculum must be drawn up, that meets the developmental objectives of reception education and whose level is adjusted throughout the year for each pupil individually on the basis of his/her abilities and interim results. * The curriculum must also clearly set out the support and guidance offered to the Non-Dutch speaking newcomer. This is done in conjunction with the relevant Centre for Pupil Guidance. * The weekly curriculum in the reception year consists of between 28 and 32 teacher hours (including religion/non-confessional ethics/own culture and religion/cultural philosophy). Up to four teacher hours per week may be used by the school for purposes other than teaching Dutch. For example, the use of these hours may be based on an analysis of the individual competences, interests and prior knowledge of the immigrant pupil. * All available information must be passed on when the pupil transitions to regular secondary education. Once the pupil has progressed to regular education, guidance and support must be maintained. Guidance may be provided within a school community or in consultation with one or several schools of another school community. Enhancing the understanding and expertise of regular teachers in and outside of reception schools by means of coaching organised by teachers from reception education, the presence of a follow-up school coach, a good transfer of pupil information and by maintaining regular contact with former reception education pupils can have a significant impact on the school results of former reception education pupils. - Quality assurance In a concern to guarantee quality of instruction and progress of the learners, from school year 2010-2011 onwards 'developmental objectives' (legally defined desired learning outcomes) for the mastering of the Dutch language were also fixed to newly arrived non-Dutch speaking immigrants. - Certification After completing the entire effective period which the foreign mother tongue newcomer has taken reception education as a regular student in fulltime mainstream secondary education, (s)he is granted a certificate of regular class attendance. The class committee of the reception education also formulates an advise with regard to the transfer of the pupil to follow-up education. In secondary education, after the completion of the reception year, the pupil is integrated into fulltime mainstream education taking account of the admission requirements defined in the regulations. In practice, this will primarily imply that enrolment takes place either on the basis of a decision by the class admissions committee or on the basis of age. The admissions committee must take into account the advice from the class committee of the reception education. Every decision that diverges from this advice must be motivated. - Support Schools who receive non-Dutch speaking immigrants receive support from School Advisory Services and the Policy
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	Research Centre on Equal Education Opportunities (the Centre for Language and Education Leuven and the Centre for Diversity and Learning Ghent). - References Annual report The Agency for Educational Services (AgODi) publishes on an annual basis a report on the reception education of foreign mother tongue newcomers (OKAN). Circular Letters BaO/2006/03 and SO 75. 2. Extra measures in order to tackle the refugee crisis Apart from the general legislation that provides extra budget to schools based on the presence of pupils from socially disadvantaged families or with special educational needs, for the refugee children the right to access to a place at school was applied rigorously and within the given delays of max. 60 days upon arrival in Belgium. During the transitory period of max. 60 days, temporary provision of education can be given in or close to the refugee centres themselves. Moreover the framework for support to newly arrived immigrant children who don't master the (Dutch) instruction language was applied strictly, with automatic granting of extra teaching hours in primary education and special welcoming classes in secondary schools. In the cities with school capacity problems, the local consultation platforms were entrusted with their regular task to draw up a plan to attribute each refugee child a place at school while respecting the legally defined principle of maintaining a good social mix at school and avoiding segregation. Soon it appeared that the normal legal framework was not sufficient and urgent measures were taken in addition: 1. Extra (temporary) welcoming classes to bridge the period between arrival and the provision of a final study place at school In contrast with our neighbouring countries, Belgium has showed an explicit concern to avoid situations where children have to follow courses in the asylum centre itself. In the few cases where this was necessary, the temporary education offer functioned as an emergency measure, and the education provision was functioning as an extra campus of a nearby school. In any case the deadline of maximum 60 days applies but it remains the overall policy aim is to have the refugee children registered as soon as possible in a regular school, even before the legally stipulated 60 days. This required extra welcoming classes in schools to be set up rapidly. 2. Extra hours for linguistic integration for children in pre-primary education (not only primary and secondary) Schools with non-Dutch speaking children younger than age 5 received € 950 for each student as counted on 01/02/2016 for (language) learning support. Moreover extra teaching hours were provided as the schoolyear progressed in case the number of non-Dutch speaking children increased. 3. Extra funding for transport (from refugee centre to school and vice versa in order to make use of available places at schools located further away or out of the crowded city centres) Elementary education: in case of asylum centres with difficult access to school by public transport, schools were given financial support for organising coach transport between the school and the asylum centre. In the case of secondary education: the provision for extra transport is usually provided by the asylum centre and in some cases supported by the social services of the municipality concerned. ADULT EDUCATION Here a solid framework existed with widespread provision for linguistic integration of adult migrants. Moreover unemployed migrants are
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	bound to follow a "integration track" combining language courses, civic/societal training and preparation for work. In this context different approaches exist in language courses depending on the preparation of the learner, e.g. illiterate migrants will follow another track than migrants with a higher education degree with already a good account of English or another European language. Refugees have been systematically guided towards these differentiated learning tracks for adult migrants and the budgets for this type of education provision were adjusted according to the increasing number of learners. Additional coaching measures remained, however, necessary to accommodate the situation in which refugees start their learning path on one location – mostly close to the refugee centre or the first place of residence – in case of removal. As many immigrants refugees show indeed preference to eventually settle in larger cities for professional reasons or in order to be closer to members of their own cultural community. It is important that the coaching can go on without interruption in the new place of residence. HIGHER EDUCATION Since the 1990-ies the Flemish Community of Belgium had specific legislation on refugees students in relation to i.a. access to higher education and financial support during their studies. Building on this already fully established legislative framework, universities and university colleges accommodated the newly arrived students. Moreover, according to a recent survey conducted by the Council of Europe, Belgium is one of the few countries that systematically applies the protocol on the recognition of higher education qualifications of refugees and persons with refugee-like status of the COE/UNESCO/EU Lisbon Recognition Convention. On this basis refugees can easily apply for recognition of their qualifications, including in situations where the qualification documents are lost or unavailable. As a supplementary measure at the level of the Government administration, extra staff for the National Academic Recognition Centre was appointed and specific training organized in order to accommodate the increase of academic recognition files introduced by refugees.
[QG210Q2_1] Please briefly indicate measures adopted by national and local authorities to ensure refugees' and migrants' right to education: (Inclusion in mainstream education)	Yes [Y]
[QG210Q2_2] Please briefly indicate measures adopted by national and local authorities to ensure refugees' and migrants' right to education: (Provision of language courses)	Yes [Y]

[QG210Q2_3] Please briefly indicate measures adopted by national and local authorities to ensure refugees' and migrants' right to education: (Specific training for educational staff)	Yes [Y]
[QG210Q2_4] Please briefly indicate measures adopted by national and local authorities to ensure refugees' and migrants' right to education: (Initiatives addressing discrimination and promoting cultural diversity and mutual acceptance)	Yes [Y]
[QG210Q2_5] Please briefly indicate measures adopted by national and local authorities to ensure refugees' and migrants' right to education: (Alternative administrative procedure (placement tests, portfolio of evidence, etc.))	Yes [Y]
[QG210Q2_6] Please briefly indicate measures adopted by national and local authorities to ensure refugees' and migrants' right to education: (Accelerated learning programmes)	Yes [Y]
[QG210Q2_7] Please briefly indicate measures adopted by national and local authorities to ensure refugees' and migrants' right to education: (Non-formal and/or alternative education programmes)	Yes [Y]
[QG210Q2_8] Please briefly indicate measures adopted by	Yes [Y]

national and local authorities to ensure refugees' and migrants' right to education: (Financial support)	
[QG210Q2_other] Please briefly indicate measures adopted by national and local authorities to ensure refugees' and migrants' right to education: (Other)	
[QG210Q3] Please briefly elaborate further on the measures taken:	See answer to previous question.
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[QG31Q1_1] Please indicate and provide any information on the difficulties encountered in the process of implementing the key provisions of the Convention/Recommen dation (including legal	

and practical obstacles) and on the main issues that need to be addressed for promoting further the right to education in your country:(Challenges related to equitable access and inclusion in education (such as poverty and socio-economic factors, cultural and traditional attitudes, remoteness, migration and displacement, etc.))	
[QG31Q1_1comment] Please indicate and provide any information on the difficulties encountered in the process of implementing the key provisions of the Convention/Recommendation (including legal and practical obstacles) and on the main issues that need to be addressed for promoting further the right to education in your country:(Comment)	
[QG31Q1_2] Please indicate and provide any information on the difficulties encountered in the process of implementing the key provisions of the Convention/Recommendation (including legal and practical obstacles) and on the main issues that need to be addressed for promoting further the right to education in your country:(Challenges related to the quality of education (such as shortages of qualified,	

trained and motivated teaching staff, non-supportive or inadequate teaching and learning as well as school environment, etc.))	
[QG31Q1_2comment] Please indicate and provide any information on the difficulties encountered in the process of implementing the key provisions of the Convention/Recommendation (including legal and practical obstacles) and on the main issues that need to be addressed for promoting further the right to education in your country:(Comment)	
[QG31Q1_3] Please indicate and provide any information on the difficulties encountered in the process of implementing the key provisions of the Convention/Recommendation (including legal and practical obstacles) and on the main issues that need to be addressed for promoting further the right to education in your country:(Challenges relating to the system and governance (such as budgetary constraints, lack or weakness of monitoring systems – including the lack of reliable data, absence of supportive/inconsistent/obsolete legal and policy environment, lack of involvement of relevant stakeholders and lack of	

cooperation/coordination at different levels, etc.))	
[QG31Q1_3comment] Please indicate and provide any information on the difficulties encountered in the process of implementing the key provisions of the Convention/Recommendation (including legal and practical obstacles) and on the main issues that need to be addressed for promoting further the right to education in your country:(Comment)	
[QG31Q1_other] Please indicate and provide any information on the difficulties encountered in the process of implementing the key provisions of the Convention/Recommendation (including legal and practical obstacles) and on the main issues that need to be addressed for promoting further the right to education in your country:(Other)	
[QG31Q1_othercomment] Please indicate and provide any information on the difficulties encountered in the process of implementing the key provisions of the Convention/Recommendation (including legal and practical obstacles) and on the main issues that need to be addressed for promoting further the right to education in your country:(Other comment)	

[QG31Q2] Please provide a brief assessment of the effectiveness of the methods introduced to remove the obstacles encountered:	Equity remains a main concern. In this context several measures have been taken, notably on monitoring the student population on the basis of socio-economic characteristics (see previous questions) and the increase of school funding on this basis, as well as targeted actions for the prevention of early school leaving and prevention of drop-out in higher education (see previous questions).
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[QG31(comment)] Fichier 1 - If you wish to share any relevant information regarding this section, please upload the file here: (Commentaire)	
[QG31(name)] Fichier 1 - If you wish to share any relevant information regarding this section, please upload the file here: (Nom du fichier)	
[QG31(size)] Fichier 1 - If you wish to share any relevant information regarding this section, please upload the file here: (Taille du fichier)	
Comptage des fichiers:	0
[r425q8_1] Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (Translation of the Convention/Recommendation into the national and possibly local languages)	

[r425q8_2] Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education)	
[r425q8_3] Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (Increased public awareness through advocacy material on the Convention/Recommendation or the core principles of the right to education)	
[r425q8_4] Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of	

the principles of non-discrimination and equality of educational opportunities? (Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments)	
[r425q8_other] Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (Other)	
[QG32(title)] Fichier 1 - If you wish to share any relevant information regarding this section, please upload the file here: (Titre)	
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